

Court No. - 21

Case :- WRIT - C No. - 10985 of 2023

Petitioner :- Jata Shankar Dubey

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Awadhesh Kumar Malviya

Counsel for Respondent :- CSC,Udit Chandra

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Prashant Kumar,J.

As prayed, a week's time is allowed to counsel for the respondents to obtain instructions.

List as fresh on 12.04.2023.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 4.4.2023

SL

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The petitioner has challenged the recovery certificate dated 21.10.2022 issued by respondent no.4 against the petitioner for recovery of electricity dues.

Learned counsel for respondent Electricity Department states that the impugned recovery has been withdrawn and that the respondent will pass fresh order after following the procedure prescribed.

Accordingly, the petition is disposed of with liberty to the respondent Electricity Department to pass fresh order strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 12.4.2023

SL